

South Lancashire Transport Act, 1958

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CHAPTER xxxiii

An Act to transfer the undertaking of the South Lancashire Transport Company to Lancashire United Transport Limited to authorise the discontinuance of the services of trolley vehicles authorised under the South Lancashire Transport Acts and Order 1900 to 1948 and for other purposes.
[23rd July 1958.]

WHEREAS—

(1) The South Lancashire Transport Company (hereinafter referred to as “the S.L.T. Company”) was incorporated by the South Lancashire Tramways Act 1900 by its then name of the South Lancashire Tramways Company and under the powers contained in the South Lancashire Tramways Acts 1900 to 1911 constructed a system of tramways in the county palatine of Lancaster:

(2) By the South Lancashire Transport Act 1929 the S.L.T. Company was authorised to abandon its said tramways and under the provisions of the South Lancashire Transport Acts and Order 1900 to 1948 the S.L.T. Company is now empowered to provide and run services of trolley vehicles on certain of the routes of its tramways and on other routes defined in the said Acts and Order and to provide and run services of omnibuses or public service vehicles:

(3) The issued share capital of the S.L.T. Company consists of seven hundred and fifty-four thousand five hundred and twenty-three shares of one pound each and each and all these shares are held by or on behalf of Lancashire United Transport Limited (hereinafter referred to as “the L.U.T. Company”):

(4) The requirements for passenger road transport in the area in the county palatine of Lancaster in which the services of trolley vehicles and omnibuses or public service vehicles of the S.L.T. Company are operated would be met more efficiently and economically by services of public service vehicles integrated with the other services of the L.U.T. Company:

(5) It is expedient that the S.L.T. Company's undertaking should be transferred to and vested in the L.U.T. Company together with all outstanding debts and liabilities and that the S.L.T. Company should be dissolved:

(6) It is expedient that the L.U.T. Company should be authorised to discontinue the services of trolley vehicles as in this Act provided and that the other provisions of this Act should be enacted:

(7) The objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited as the South Lancashire Transport Act 1958.

Interpretation. 2.—(1) In this Act unless the context otherwise requires—
“apparatus” includes all posts poles standards brackets cables conductors tubes mains transformers feeders wires and other apparatus and equipment provided for or in connection with the working and lighting of trolley vehicles and trolley vehicle routes;
“day of transfer” means the thirty-first day of October nineteen hundred and fifty-eight or such earlier date not being less than one month from the passing of this Act as the L.U.T. Company by resolution of the directors may determine;
“existing Acts and Order” means the South Lancashire Transport Acts and Order 1900 to 1948 which are set out in the schedule to this Act and includes all byelaws and regulations in force under those enactments or under any enactment incorporated therewith;
“local authority” and “statutory undertakers” have the same respective meanings as in the Local Government Act 1933;
“L.U.T. Company” means Lancashire United Transport Limited;

“ public service vehicle ” has the same meaning as in section 39 of the Road Traffic Act 1956;

“ road authority ” means with reference to any road or part of a road in which any apparatus provided by the S.L.T. Company is situated the authority body or person exercising the functions of maintenance and repair of such road or part of a road;

“ S.L.T. Company ” means the South Lancashire Transport Company;

“ S.L.T. undertaking ” means the whole of the undertaking of the S.L.T. Company as existing on the day of transfer including all real and personal property choses in action rights powers easements and privileges belonging to or enjoyed by the S.L.T. Company immediately before the day of transfer;

“ traffic commissioners ” means the traffic commissioners appointed pursuant to Part IV of the Road Traffic Act 1930;

“ trolley vehicle route ” means any route or any part thereof upon which the S.L.T. Company is by the existing Acts and Order authorised to work and run trolley vehicles and includes all turning points provided in connection with any such route.

(2) If under the provisions of subsection (1) of this section the L.U.T. Company determine that any date earlier than the thirty-first day of October nineteen hundred and fifty-eight shall be the day of transfer they shall not less than three days before the date so determined publish notice thereof in the London Gazette.

3.—(1) On the day of transfer the S.L.T. undertaking shall by virtue of this Act be transferred to and shall vest in the L.U.T. Company without payment therefor and the S.L.T. Company shall by virtue of this Act be dissolved.

Transfer of
S.L.T. under-
taking and
dissolution
of S.L.T.
Company.

(2) On and after the day of transfer the L.U.T. Company shall have and may exercise all and the like powers rights and privileges and shall be subject in relation thereto to the like duties and obligations as the S.L.T. Company at the passing of this Act had and was subject to under the existing Acts and Order (until the same are repealed as provided in this Act) and any reference in any other enactment to the S.L.T. Company shall be read as a reference to the L.U.T. Company.

4. Any action arbitration or proceeding or any cause of action arbitration or proceeding pending or existing on the day of transfer by or against or in favour of the S.L.T. Company shall not abate or be discontinued or be in any wise prejudicially

Pending
actions not
to abate.

affected by the vesting of the S.L.T. undertaking in the L.U.T. Company but may be continued prosecuted and enforced by against or in favour of the L.U.T. Company as and when it might have been continued prosecuted and enforced by against or in favour of the S.L.T. Company if this Act had not been passed but not further or otherwise.

Contracts to be binding.

5. Subject to the provisions of this Act all agreements conveyances contracts deeds leases and other instruments in force on the day of transfer shall as from that day be as binding and of as full force and effect in every respect and may be enforced as fully and effectually as if instead of the S.L.T. Company the L.U.T. Company had been a party thereto or bound thereby or entitled to the benefit thereof or referred to therein.

Road service and other licences.

6.—(1) All road service licences and public service vehicle licences granted to the S.L.T. Company and in force immediately before the day of transfer shall have effect as from the day of transfer as if they had been granted to the L.U.T. Company.

(2) Nothing in this section shall prejudice or affect the provisions of section 92 of the Road Traffic Act 1930.

Recovery of sums due to S.L.T. Company.

7. All sums which at the day of transfer are due or payable or accruing due or payable to the S.L.T. Company shall continue to be due and payable and may be collected and recovered by the L.U.T. Company in the same manner and with and by the same benefits and processes as those with and by which the S.L.T. Company might have collected and recovered the same and shall belong to the L.U.T. Company for its own benefit.

Transfer of liabilities.

8. The L.U.T. Company shall on the day of transfer become responsible for the due payment and discharge of all debts and other liabilities of the S.L.T. Company outstanding immediately before the day of transfer.

As to employment of officers and servants of S.L.T. Company.

9. The L.U.T. Company shall take over and employ as from the day of transfer such of the officers and servants of the S.L.T. Company as on that day are willing to enter the service of the L.U.T. Company on terms and conditions including terms relating to superannuation or pension rights not less favourable than those on which they were employed by the S.L.T. Company immediately before the day of transfer.

Books etc. to remain evidence.

10. All books records and documents which if this Act had not been passed would have been evidence in respect of any matter for or against the S.L.T. Company shall on and after the day of transfer be admitted in evidence in respect of the same or the like matter for or against the L.U.T. Company.

Discontinuance of trolley vehicles.

11.—(1) On and after the day of transfer the L.U.T. Company may discontinue the running of trolley vehicles upon any trolley vehicle route and upon such discontinuance all the powers

duties and obligations conferred or imposed on the L.U.T. Company by virtue of section 3 (Transfer of S.L.T. undertaking and dissolution of S.L.T. Company) of this Act with reference to the running of trolley vehicles upon that trolley vehicle route shall cease and determine.

(2) Notwithstanding the provisions of subsection (1) of this section the L.U.T. Company shall not under the powers of that subsection discontinue the running of trolley vehicles upon any trolley vehicle route unless and until it has satisfied the traffic commissioners that as from and after the date on which the running of trolley vehicles on that route is discontinued the needs of the public for passenger road transport in substitution for the services discontinued will be provided on that route or on an alternative route by—

- (a) services of public service vehicles run by the L.U.T. Company; or
- (b) services of public service vehicles run by the L.U.T. Company and any other company local authority body or person jointly by agreement between the L.U.T. Company and that company local authority body or person;

or partly by one of such classes of services and partly by the other.

(3) The discontinuance of the running of trolley vehicles upon any trolley vehicle route on which the S.L.T. Company has at the passing of this Act ceased to provide regular services of trolley vehicles is hereby confirmed and for the purposes of the following provisions of this Act the L.U.T. Company shall be deemed to have discontinued the running of trolley vehicles on that route on the day of transfer.

12.—(1) Notwithstanding anything in the existing Acts and Order the L.U.T. Company may at any time within a period not exceeding three years from the date on which it discontinues the running of trolley vehicles along a trolley vehicle route in pursuance of section 11 (Discontinuance of trolley vehicles) of this Act or such longer period as the Minister of Transport and Civil Aviation may on the application of the L.U.T. Company allow take up and remove any redundant apparatus and shall within such period remove any redundant apparatus (other than any underground cable or junction box). Removal of apparatus.

(2) Any apparatus so taken up and removed by the L.U.T. Company may be used or disposed of as the L.U.T. Company thinks fit.

(3) Any underground cable or junction box which at the expiration of the period provided under subsection (1) of this section for its taking up and removal has not been taken up and

removed shall become the property of the road authority who may leave it in situ or take up remove and use or dispose of the same as they think fit.

(4) On the taking up and removal of any apparatus situated in or under any road the L.U.T. Company shall with all reasonable speed and to the reasonable satisfaction of the road authority fill in the ground restore the portion of road in or under which such apparatus was laid or placed make good the surface and clear away all surplus paving or metalling material or rubbish occasioned by such work and so long as the road is opened or broken up it shall cause the place where the road is opened or broken up to be fenced and to be properly lighted at night.

(5) Any difference which may arise under this section between the L.U.T. Company and a road authority shall be referred to and determined by an arbitrator to be appointed by agreement between the parties or in default of agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers.

(6) In this and the next following section "redundant apparatus" means in relation to any trolley vehicle route along which the running of trolley vehicles has been discontinued under the provisions of section 11 (Discontinuance of trolley vehicles) of this Act any apparatus belonging to the L.U.T. Company provided in connection with that route not being apparatus required in connection with any other trolley vehicle route upon which a service of trolley vehicles is still in operation.

As to sale of
apparatus
to local
authorities
etc.

13.—(1) Notwithstanding anything in section 12 (Removal of apparatus) of this Act the L.U.T. Company and any local authority or statutory undertakers within whose district limits of supply or area (as the case may be) any redundant apparatus is situated may enter into and carry into effect agreements for the sale by the L.U.T. Company and the purchase by the local authority or the statutory undertakers of the redundant apparatus in situ on such terms and conditions as may be agreed between the parties to the agreement:

Provided that no statutory undertakers shall be entitled to purchase any redundant apparatus which the L.U.T. Company is willing to sell to them under this subsection except for use by those undertakers for the purposes of their undertaking.

(2) Any redundant apparatus which the L.U.T. Company has agreed to sell in situ shall as from the date on which the sale of that apparatus becomes effective be deemed to have been lawfully placed or erected by the local authority or statutory undertakers to whom it has been sold and as from that date all liabilities duties and obligations of the L.U.T. Company with reference to that apparatus shall cease and determine.